



CERTAMARIS LEGAL DOCUMENT SYSTEM

Vendor Services Agreement

CertaMaris agreement for third-party SaaS, consulting, hosting or professional vendors.

DOCUMENT ID

CM-LEGAL-23

VERSION

1.0

ISSUE DATE

23 August 2026

STATUS

CONTROLLED EXECUTION TEMPLATE

DOCUMENT OWNER

Legal / Procurement

APPROVER

Authorized CertaMaris Signatory

DOCUMENT PURPOSE / KEY MESSAGE

Provides a vendor-side framework for services, fees, confidentiality, security, data protection, IP, warranties, indemnity, liability, termination and transition.

EFFECTIVE

Upon authorized execution

CLASSIFICATION

CONFIDENTIAL - LEGAL

LEGAL STATUS

Purpose, Scope and Controlled Use

CertaMaris agreement for third-party SaaS, consulting, hosting or professional vendors.

This document has been populated with CertaMaris standing business, platform, security, privacy, AI and commercial positions. It remains a reusable execution template because the actual counterparty, transaction, fees, dates, signatures, jurisdictional corporate particulars or other deal-specific facts vary by engagement. Those fields must be completed before execution.

CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

Transaction-specific fields intentionally left for execution include the actual CertaMaris legal entity and formation jurisdiction (if not already established in the Order Form), counterparty identity, addresses, signatory names/titles, signature dates, commercial scope/fees, and any negotiated governing-law or venue choice.

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

1. Services and Orders

The applicable agreement or schedule defines services, specifications and order process. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

2. Performance and Personnel

The applicable instrument states standards, staffing and subcontractor rules. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

3. Fees, Invoices and Taxes

Fees, subscription scope and billing frequency are stated in the applicable Order Form. Invoices are due Net 30 unless the applicable Order Form states otherwise. Overdue undisputed amounts may accrue a late charge at the lesser of 1.5% per month or the maximum rate permitted by law. Customer is responsible for applicable sales, use, VAT and similar transaction taxes other than taxes based on CertaMaris's net income, subject to valid exemption documentation. CertaMaris may suspend affected Services for unpaid undisputed amounts after 10 days after written notice for nonpayment of undisputed amounts. to the extent permitted by the Agreement.

4. CertaMaris Materials and Access

Limit access/use of CertaMaris systems and data. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

5. Confidentiality

Each party will protect the other's Confidential Information using at least reasonable care and will use it only to perform or exercise rights under the Agreement. Customer vulnerability findings, network-zone maps, remote-access pathways, technical inventories, cyber plans and actual security posture are Customer Confidential Information. CertaMaris methodology, non-public product architecture, security materials and commercial terms are CertaMaris Confidential Information. Standard exclusions apply for information lawfully public, previously known without duty, independently developed, or rightfully received from a third party. Confidentiality duties continue for five years after disclosure or termination; trade secrets remain protected for so long as they qualify as trade secrets under applicable law. Required legal disclosures are permitted with notice where lawful.

TERMS / NOTICE

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6. Security and Privacy

Incorporate Vendor DPA/Security Addendum where applicable. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

7. Intellectual Property

CertaMaris and its licensors retain all right, title and interest in the Services, software, APIs, Documentation, templates, user-interface designs, control mappings, methodology, Cyber Resilience Twin framework, generalized know-how, and improvements that do not identify or disclose Customer Content. Customer receives only the rights expressly granted in the Agreement. Feedback may be used without restriction provided CertaMaris does not identify Customer or disclose Customer Confidential Information.

8. Compliance

Each party will comply with laws applicable to its performance, including applicable export-control, sanctions, anti-bribery and anti-corruption requirements. Customer will not use the Services for prohibited end users, embargoed activity, unlawful intrusion or safety-critical control. CertaMaris is a workflow and assurance technology provider; it does not issue class, flag-state or regulatory approvals and does not provide legal advice.

9. Warranties

CertaMaris warrants that it will perform the paid Services in a professional and workmanlike manner and substantially in accordance with applicable Documentation during the term. Except for express warranties in the Agreement, the Services and outputs are provided on an 'as is' and 'as available' basis to the maximum extent permitted by law. CertaMaris does not guarantee that use will be uninterrupted or error-free, that every vulnerability or compliance gap will be identified, or that Customer will pass an audit, class review, survey, inspection or regulatory assessment. Official legal, flag, class and regulatory requirements control over software guidance.

10. Indemnification

CertaMaris will defend Customer against a third-party claim that authorized use of the paid Services infringes a United States patent, copyright or trademark and will pay finally awarded damages or approved settlement amounts, subject to prompt notice, CertaMaris control of defense, cooperation, and standard exclusions for Customer Content, unauthorized modifications, combinations, instructions or continued use after notice. Customer will defend CertaMaris against third-party claims arising from Customer Content, unlawful or unauthorized use, or Customer's failure to obtain required rights. The Order Form may modify indemnity scope.

TERMS / NOTICE

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11. Liability

Except for Excluded Claims, each party's aggregate liability is capped at the fees paid or payable under the affected Order Form during the 12 months preceding the event giving rise to the claim. Liability for breach of confidentiality, data-protection/security obligations, and CertaMaris IP indemnification is capped at two times the general liability cap. Payment obligations, fraud, willful misconduct, and liability that cannot lawfully be limited are not subject to the contractual caps to the extent stated in the Agreement. To the maximum extent permitted by law, neither party is liable for indirect, incidental, special, consequential, exemplary or punitive damages or lost profits, revenues, goodwill, business opportunity or anticipated savings, even if advised of the possibility, except to the extent an express indemnity requires payment of third-party amounts.

12. Insurance

Required coverage where material. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

13. Audit and Records

Access to compliance evidence and records. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

14. Term and Termination

The Agreement begins on the effective date stated in the applicable Order Form and continues while an Order Form remains in effect. Unless an Order Form states otherwise, a subscription renews for successive 12-month periods unless either party gives at least 30 days written notice before the then-current term ends. Either party may terminate for material breach not cured within 30 days after written notice for a material breach capable of cure; the payment cure period is 10 days after written notice for nonpayment of undisputed amounts.. CertaMaris may suspend access for material security risk, unlawful use, Acceptable Use violations, or nonpayment, using reasonable efforts to limit impact. Insolvency and other non-curable termination rights apply as stated in the Agreement and applicable law.

15. Data Return / Deletion

Require return/deletion and certification. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

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16. General

Assignment, publicity, notices, law and venue. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

DOCUMENT CONTROL

Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

CONTROL FIELD	VALUE
Version	1.0
Issue date	23 August 2026
Status	CONTROLLED EXECUTION TEMPLATE
Effective	Upon authorized execution
Document owner	Legal / Procurement
Approver / execution authority	Authorized CertaMaris Signatory
Review trigger	Material legal, provider, privacy, security, jurisdiction, service-model or commercial change

Execution / approval record

CERTAMARIS AUTHORIZED SIGNATORY / APPROVER

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____

COUNTERPARTY / SECOND APPROVER AS APPLICABLE

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____